

The parties tentatively agree as follows for Section 5, 6, 14, 15 (for 21-22), 16 (21-22), 24:

SECTION 5 – FAIR SHARE FEE

A. [Note: re-lettered throughout] Any provisions of this section that were declared unconstitutional by the U.S. Supreme Court in *Janus v. American Federation of State, County, and Municipal Employees, Council 31*, shall no longer apply, unless or until the *Janus* decision is overturned or modified by future Supreme Court rulings and/or changes in state or federal law. All other provisions of this Article which are unaffected by the scope of the *Janus v. American Federation of State, County, and Municipal Employees Council 31*, shall remain in full force and effect.

B. Automatic Payroll Deduction

The Board agrees to automatic payroll deduction, as a condition of employment, of an amount equal to the dues of the United Education Profession (B.E.A., UniServ, NEOEA, OEA, NEA) from the pay of all members (excluding members on leave of absence and casual substitutes) who elect not to become members of the United Education Profession (UEP), or who elect not to remain members.

C. Implementation

The Board Treasurer, upon notification from the B.E.A. that a member has terminated membership, shall commence the check-off of the fair share fee with respect to the former member, and the amount of the fee yet to be deducted shall be the annual membership dues less the amount previously paid through payroll deduction.

D. Commencement

Payroll deduction of such fair share fee shall begin with the first paycheck in February and shall continue through the first paycheck in August.

E. Transmission of Rates

Dues rates and fair share fee rates shall be transmitted by the B.E.A. to the Board's Treasurer for the purpose of determining amounts to be payroll deducted, and the Board agrees to promptly transmit all amounts deducted to the B.E.A.

F. New Hires

The Board's Treasurer shall inform the B.E.A. when there is a newly-hired

BW
1/29/2024

BBH BOE and BEA Negotiations
January 29, 2024 –TA – 4 PM

teacher after the school year begins within five (5) calendar days of that teacher being hired. If that teacher elects not to join the B.E.A., the B.E.A. shall inform the Board's Treasurer of that within thirty (30) calendar days of that teacher's date of hire and shall also inform the Board's Treasurer as to that teacher's annual fair share fee. Payroll deductions, in substantially equal amounts, shall commence on the first pay date after the later of sixty (60) calendar days of employment or the first paycheck in February and shall continue through the first paycheck in August.

G. Provisions of Records

The Board agrees to provide B.E.A. with an initial list of names of teachers for whom such deductions are being made and the amount deducted for each. The B.E.A. will be notified of any changes in the initial list.

H. Appeal

Upon timely demand, non-members may appeal to the OEA the payment of the fair share fee pursuant to the internal procedure adopted by the OEA or such non-members may submit such appeals as provided by law.

I. Amount

Nevertheless, the amount to be deducted from the pay of all non-Association members shall be the full dues of the UEP unless the B.E.A. notifies the Board Treasurer to the contrary, and such deductions shall continue through the remaining number of payroll periods over which B.E.A. membership dues are deducted.

J. Exclusive Right of B.E.A.

The above fair share fee provision shall be an exclusive right of the B.E.A. not granted to any other organization seeking to represent teachers in the bargaining unit represented by the B.E.A.

K. Defense and Indemnification

B.E.A. agrees to indemnify, defend, and hold the Board and administration, including each individual Board member, harmless for any cost or liability incurred as a result of the implementation and enforcement of this provision. B.E.A. reserves the right to designate the attorneys for the purpose of responding to any claims, demands, suits, or other forms of action hereunder. The Board shall give B.E.A. written notice of any claim or demand arising out of or in any way related to the implementation of this provision within ten (10) calendar days after receipt of such demand or claim. The Board will cooperate with the B.E.A. at all levels of any proceedings.

*BBH
1/29/2024*

~~1. Any provisions of this section that were declared unconstitutional by the U.S. Supreme Court in *Janus v. American Federation of State, County, and Municipal Employees, Council 31*, shall no longer apply, unless or until the *Janus* decision is overturned or modified by future Supreme Court rulings and/or changes in state or federal law. All other provisions of this Article which are unaffected by the scope of the *Janus v. American Federation of State, County, and Municipal Employees Council 31*, shall remain in full force and effect.~~

SECTION 6 – SHARED SOLUTIONS COMMUNICATIONS FORUM

A. Purpose

There shall be a Shared Solutions Communications Forum. The purposes of this Shared Solutions Communications Forum is to maintain continued sound communication between the administration and teaching staffs. The administration shall have the right to invite their legal counsel. The Association shall have the right to invite their OEA/NEA Labor Relations Consultant.

B. Dissolution

~~Upon mutual agreement, The Shared Solutions Communications Forum may be dissolved by the B.E.A. or the Board for any reason by delivery of written notice to the other party. The written notice must include the specific reasons for the dissolution.~~

C. Schedule

The guidelines will be revised to reflect up to six (6) meetings per school year, with every other meeting being scheduled outside of the school day. The ~~Assistant Superintendent Director of Human Resources~~ and B.E.A. President will meet no later than the second week of the school year to establish a schedule for the meetings. Participants for meetings occurring during the school day will be limited to seven (7) per team. At the request of either party, a mediator from FMCS may be invited to facilitate.

D. Agenda

The development of the agenda and recording of minutes will be a shared responsibility between the ~~Assistant Superintendent Director of Human Resources~~ and the B.E.A. President. If there are no substantive issues to be discussed, the meeting will be cancelled by mutual agreement. The agenda will be provided two (2) work days prior to the scheduled meeting of the Shared Solutions Communications Forum. While pending grievances will not be a topic of discussion at the Shared Solutions Communications Forum, issues which may become grievances are acceptable topics of discussion.

BBH
1/29/2024

SECTION 14 – PROGRESSIVE DISCIPLINE

A. Just Cause

For good and just cause, the administration may take disciplinary action against any teacher. Discipline in cases of leave misuse is not covered in this section; it is covered in Section 20. The administration shall immediately notify a teacher whenever there is a reasonable belief that the District may be required by law to report any action, investigation or final disposition related to the discipline of a teacher to the Ohio Department of Education (ODE), except at the request of law enforcement in a criminal matter or as prohibited by law. The teacher will be notified if a report is submitted to ODE and shall be provided with a copy of the report submitted to ODE.

B. Steps of Progressive Discipline

The administration will use the following steps of progressive discipline in the disciplinary process. In the case of a serious infraction, progressive discipline may begin at any step:

Step 1. Verbal reprimand

(Note: fixed spacing above)

Step 2. Written reprimand

Step 3. Suspension with or without pay, not to exceed two (2) days
Step 4. Suspension with or without pay, not to exceed five (5) days
Step 5. Termination in accordance with O.R.C. 3319.16

C. Fact Gathering Meeting

1. Fact gathering meetings are required for any disciplinary step.
2. The teacher shall have the right to have up to two (2) representatives at this meeting. The fact gathering meeting scheduling letter will identify this right and shall be sent to the teacher and the BEA President. These representatives shall be either B.E.A. and/or OEA representatives. The administrator conducting the fact gathering meeting may invite district representative(s).

BBH BOE and BEA Negotiations
January 29, 2024 –TA – 4 PM

1. When the request for such BEA/OEA representative(s) is made, no meeting shall take place unless the representative(s) are present. The parties shall work in good faith to schedule the meeting as soon as possible.
 2. If the teacher chooses not to have a BEA or OEA representative at the fact gathering meeting, he/she shall inform the **Assistant Superintendent** ~~Director of Human Resources~~ or the Superintendent, and BEA President prior to the fact gathering meeting.
 3. The failure to present rebuttal testimony or other evidence at a fact gathering meeting shall not be used against the teacher.
- D. Disciplinary Hearing: If the administrator determines that progressive discipline is warranted, a disciplinary hearing shall be held, which shall follow any fact gathering meeting. The teacher shall be informed before the discipline hearing of the anticipated step on which he/she is being placed.
1. If the anticipated step is step 1 or 2, the teacher's immediate supervisor or designee shall hold the disciplinary hearings.
 2. If the anticipated step is step 3 or 4, either the **Assistant Superintendent** ~~Director of Human Resources~~ or the Superintendent shall conduct disciplinary hearings.
 3. If the anticipated step is step 5, the Superintendent shall conduct the disciplinary hearing.
 4. At least two (2) workdays prior to the disciplinary hearings the teacher will receive written notice of the reasons for the hearing and the right to have up to two (2) B.E.A./OEA representatives of his/her choice at this hearing. If a representative(s) is requested, no disciplinary hearing shall occur unless the representative(s) is present. The parties shall work in good faith to schedule the meeting as soon as possible. The administrator conducting the hearing may invite district representative(s). The **Assistant Superintendent** ~~Director of Human Resources~~ and Association President, will also receive a copy of the notice. If the teacher does not choose to have B.E.A. or OEA representatives at the disciplinary hearing, one (1) B.E.A. or OEA observer may attend the meeting. [See Attachment 11]
 5. At this hearing the teacher shall have the right to face his/her accuser(s) and rebut the allegations. If the accuser(s) is a student(s), the student's parents will be permitted to attend the hearing.

BWW
1/29/2024

BBH BOE and BEA Negotiations
January 29, 2024 –TA – 4 PM

6. The failure to present rebuttal testimony or other evidence at a disciplinary hearing shall not be used against the teacher.
7. At the conclusion of this disciplinary hearing, if the administrator issues a verbal reprimand, that administrator shall notify the B.E.A. President and the Assistant Superintendent Director of Human Resources on the appropriate form (Attachment 10) that a verbal reprimand has been issued. This form shall not be placed in the teacher's personnel file; instead it will be placed in the administrative working file subject to the restrictions outlined in Section 14-G and Section 28-I. If the administrator issues a discipline other than a verbal reprimand, a copy will be placed in the teacher's personnel file.
8. Following the conclusion of the hearing, if the District determines that discipline is warranted, the teacher shall be provided with specific written reasons for the discipline and the discipline step being imposed shall be stated.
9. Following the conclusion of the disciplinary hearing, if a suspension without pay is issued, the Superintendent has the authority to suspend a teacher without pay without Board action.
10. Following the conclusion of the disciplinary hearing, if termination is being recommended, then ORC 3319.16 shall apply.

E. Twenty-Four Months

Any sequence of steps of discipline shall be for the same or similar offense. If more than twenty-four (24) months have lapsed between any step of the progression, it may not be used as part of the progression.

F. Termination

In the case of a serious infraction, progressive discipline may begin at any step. Termination will be in accordance with O.R.C. 3319.16.

G. Right of Appeal

Following the appropriate administrator's determination of the need for discipline, the teacher shall have the right to appeal Step 1, Step 2, Step 3 and Step 4 discipline through the grievance procedure of this Agreement. The grievance procedure cannot be used to appeal Step 5 discipline; the only Step 5 remedy is through O.R.C. 3319.16.

1. A grievance may be filed on the basis of unjust discipline as well as on violation of the process outlined in Section 14 of the

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1/29/2024

Agreement.

2. In the event a grievance is filed on a suspension (other than a suspension that occurs pending termination in Step 5), the suspension shall be held in abeyance until after the grievance procedure has been completed.
3. Should the teacher be supported in his/her position on the grievance, all records of such discipline shall be removed from all personnel and building files.

H. Pay/Benefits

If the teacher does not grieve a suspension without pay or if he/she does grieve a suspension without pay and does not prevail in the grievance, the resulting loss of pay will be reflected in the remaining paychecks for that year on a pro-rata basis or as otherwise agreed by the parties. All benefits will continue in force during any suspension (except a Step 5 suspension, with or without pay) as contained in Section 14.

I. Assignment to Home

In the case of a serious infraction the Superintendent or, in the absence of the Superintendent, the Assistant Superintendent Director of Human Resources, may immediately assign a teacher to his/her home with pay prior to a fact gathering meeting and/or a disciplinary hearing.

1. When the teacher is assigned to his/her home, he/she shall be given written reasons for the assignment.

SECTION 15 – WORKING CONDITIONS
IN EFFECT FOR THE 2021-2022 SCHOOL YEAR ONLY

A. Length of the Teacher's Day

1. The teacher workday shall be as follows:

a. For the 2021-2022 school year, all teachers' workdays will be eight hours. Start and end times shall align to the Memorandum of Understanding for the 2019-2020 and 2020-2021 school years, as follows:

(1) 7:10 a.m. to 3:10 p.m. – High School

BBH BOE and BEA Negotiations
January 29, 2024 –TA – 4 PM

(2) 7:20 a.m. to 3:20 p.m. Middle School

(3) 8:00 a.m. to 4:00 p.m. Elementary Schools K-4

(4) 7:30 a.m. to 3:30 p.m. Stepping Stone

b. The sixty (60) minutes per week of PLC time may be scheduled through mutual PLC decision in sixty (60) minute blocks and occur beyond the scheduled eight (8) hour workday, whereby Association members will be provided flexible time on another day(s). Association members shall notify their building administration prior to using flexible time.

c. Thirty (30) hours of administratively called meetings per year (exclusive of student disciplinary meetings, IEP meetings, and emergency meetings called by the Superintendent) scheduled during the eight (8) hour workday.

d. Three Hundred and Sixty (360) minutes of planning time per week for elementary teachers during the student day.

e. Four Hundred (400) minutes of planning time per week for middle school and high school teachers during the student day.

f. If a staff member is unable to attend a scheduled PLC meeting, an equivalent alternative will be developed between the teacher and his/her supervisor.

2. School Year

a. The parties acknowledge that from time to time certain circumstances arise whereby it may be prudent to adjust the starting and ending times of a teacher workday.

b. When such circumstances arise, and upon the mutual agreement between the teacher and the building administrator, and with prior written approval of the teacher's building principal, the starting and ending time of a teacher's workday may be adjusted to times which are different from the teacher workday consistent with the parameter that the adjusted workday or make up day time arrangement must still conform with the eight (8) hour

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1/29/2024

BBH BOE and BEA Negotiations
January 29, 2024 – TA – 4 PM

~~workday requirement for teachers.~~

B. — Lunch Time

All teachers shall be granted a minimum forty (40) minute lunch period without assigned responsibilities. The pass time between bells shall not be included in the calculations of a teacher's lunch period. When necessary, and with mutual agreement between the Superintendent (or designee) and the B.E.A. President, the forty (40) minute lunch period may be reduced to accommodate other instructional needs and objectives. The occasional shortening of the forty (40) minute lunch period for routine activities such as assemblies, pep rallies or early releases shall not be subject to this provision. However, in no instance shall lunch be shortened to less than 35 minutes under any of the aforementioned circumstances.

C. — School Year

1. — The school year shall consist of one hundred eighty-six (186) days.

a. — The first two teacher days of the school calendar shall be for building and District meetings and teacher work; however, the meetings will not exceed the equivalent of one (1) day.

b. — The last day of the first and third quarters shall be one-half ($\frac{1}{2}$) day for professional development (3.5 hours) and one-half ($\frac{1}{2}$) day for teacher work.

c. — The last day of each semester shall be one-half ($\frac{1}{2}$) teacher work day and one-half ($\frac{1}{2}$) unassigned day.

d. — The Wednesday before Thanksgiving shall be release time in exchange for the two (2) parent teacher conferences.

2. — Teachers new to the district are required to attend a two-day new teacher orientation.

3. — There shall be one (1) student early release day on the last student day of the school calendar for teacher work.

4. — Students enrolled in the Developmental Preschool Program shall have a delayed start to the school year for the first three (3) regularly scheduled student days and shall be released early from attending the last four (4) regularly scheduled student days.

Baw
1/29/2024

5. There shall be a Teaching and Learning Committee at each building that is comprised of teachers and at least one (1) administrator. Additionally, there shall be a District Teaching and Learning Committee comprised equally of administrators and teachers. One (1) person from each Building Teaching and Learning Committee shall serve on the District Teaching and Learning Committee.

6. In the event that calamity days are to be made up if the amount used in a school year is in excess of five (5), a committee will be formed consisting of one representative from the Brecksville-Broadview Heights Education Association, one representative from the Brecksville-Broadview Heights Organization of Support Staff, one administrator, and one community member. The committee will make a recommendation to the Board as to when the days should be made up.

Calamity make up days will be reflected on the District's calendar. In the event of a delayed start due to District wide or building calamity, teachers will be expected to report to work at their normal schedule unless directed otherwise. Such directive to remain at home shall not be unreasonably withheld. Teachers shall not be reprimanded if adverse weather conditions prevent them from reporting at this regularly scheduled time on days where there is a delayed start for students.

D. Assignment

1. The Superintendent, after consultation with the building principal or principals, will assign teachers or reassign teachers to buildings within the system. Building principals are responsible for assigning each teacher his/her instructional and non-instructional work load. The assignments are normally regarded as annual assignments but may be modified during the year by the principal as conditions warrant. No teaching assignment is regarded as permanent.

2. Prior to March 31st of each school year, each teacher will be given the opportunity of expressing any desired change in assignment by completing the Staff Survey and Transfer Request Form (Attachment 2). A teacher who requests consideration for a vacancy will be notified of a vacancy in the area stated on his/her Staff Survey and Transfer Request Form. During the summer break, such notification shall be by the

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1/29/2024

BBH BOE and BEA Negotiations
January 29, 2024 –TA – 4 PM

District's website. Teachers may sign up for automatic email alerts about postings.

3. The needs of the school district are the major criteria for making instructional and non instructional assignments. Other factors which shall be considered in developing equitable work loads are: size of the class, new programs, specialized needs of a typical student, specialized talents of the teacher, formal preparation as authorized on the state certificate/license, and personal preference of individual staff members.

4. An annual assignment notice shall be provided to each teacher prior to the end of the school year. Assignment at a later date or changes in assignment may be made by the administration if, in its judgment, it is the best interest of the school system. Every effort will be made to assign teachers to classes which correspond to their formal preparation, but exceptions may be made for a justified cause. The assignment notice shall include:

a. Subject area, course, and/or grade levels to be taught;

b. Building to which the teacher is assigned.

5. In addition to the classroom instructional assignment, teachers may be assigned on an equitable basis, as determined by the building principal, such non instructional assignments as supervision of homeroom, corridors, lunchrooms, playgrounds, and other tasks necessary for operating a school building. These tasks are considered a part of the total teaching assignment except when the Board approves certain duties deserving compensation above the salary schedule.

6. It is desirable to provide teachers the opportunity to be considered for vacancies. During the summer months administrative, teaching, and supplemental vacancies will be listed on the District's website. Teachers may sign up for automatic email alerts about postings. Teachers who apply for such vacancy within seven (7) days of the posting of the notice shall be given full consideration for any vacancy based upon area of competence, certification, evaluation, and length of service in the District.

7. When vacancies meeting specific requests are available, the teacher requesting such change will be given first consideration, providing that teacher is qualified for the position available.

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1/29/2024*

8. In order to ensure effective delivery of instruction by appropriately certified and licensed individuals, a teacher must maintain his/her teaching certification/licensure for at least five (5) years after his/her date of hire. After that time, if the teacher has not taught in an area in which he/she is certified/licensed in any rolling five (5) year period, the teacher may drop that area of certification/licensure with notice to the Superintendent/designee as per Ohio Department of Education requirements, to be submitted on or before March 31 of the fifth (5th) year of the rolling five (5) year period via Attachment 2. For a teacher on a leave of absence, the rolling five (5) year period would encompass only years of active teaching service.

9. Teachers are expected to maintain on file with the Superintendent's office paperwork reflecting current licensure. In the event a teacher does not timely complete his/her coursework requirements or timely file to renew the teacher's licensure prior to the start of the school year, the teacher will be expected to apply for and receive a substitute license and will teach under the substitute license until the teacher's regular teaching license is renewed. The teacher will be paid at the hourly substitute teaching rate of pay and will not be eligible for benefits for the period in which they are teaching under the substitute license. The teacher will not be entitled to any retroactive reinstatement of the teacher's regular salary upon receipt of the renewed license. In the event the teacher does not obtain the renewed license prior to the start of the second grading period, the teacher will be terminated for cause pursuant to ORC 3319.16. This deadline of the start of the second grading period shall be mutually extended if it is violated for reasons beyond the teacher's control.

E. Position sharing

Position sharing shall refer to an option available to pairs of teachers to share one full-time position.

1. Position sharing opportunities shall be granted pursuant to the teachers' seniority, i.e., the total years of seniority in the partnership.

2. The total number of position sharing teachers shall not exceed ten (10) teachers, i.e., five (5) pairs per year. In no event will there be more than one (1) position sharing arrangement at any

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1/29/2024

BBH BOE and BEA Negotiations
January 29, 2024 –TA – 4 PM

grade level in any K-3 elementary building. At the 4-5 elementary building there will be no more than three (3) position sharing arrangements with no more than one (1) per grade level/specials/special education unless the administrator determines the master schedule can accommodate an exception.

3. Initial applications for position sharing teachers must be submitted not later than February 1st. Teachers who wish to reapply for the following year must submit their applications by March 1st. Each teacher shall assume the responsibility for finding his/her position sharing partner but may request assistance from the Director of Human Resources' Office in finding a position sharing partner. No teacher shall be required to position share.

4. On or before April 1st the position sharing teams must submit for approval to the building principal a Position Sharing Plan ("Plan") which must address the following elements:

a. A full description of the teaching techniques, methods, and grading practices to be employed by the team;

b. How the team will communicate with one another to ensure information learned during school meetings or during the work day is timely shared;

c. How the position sharing teachers will handle parent or third party communications and ensure both teachers are fully up to date on all issues and concerns regarding their students;

d. How the teachers will effectively communicate during the course of the work day, work week and school year to ensure seamless communication between the teachers; and

e. How the teachers will divide up instruction and planning time;

5. Each teacher shall acquire one year seniority for each year of position sharing work providing each teacher works a minimum of 120 days per year or is scheduled to work two and one half (2 ½) days per week. For example, a Kindergarten teacher with a fifty percent (50%) contract would be required to perform two and one half (2 ½) days of instruction per week.

6. Position sharing teachers shall receive a pro-rata share of all

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1/29/2024

BBH BOE and BEA Negotiations
January 29, 2024 –TA – 4 PM

salary and benefits as contained in this contract.

7. The schedule to be worked by position-sharing teachers shall be determined by the administration with input from the teachers involved. The Plan developed by the team (see paragraph 4, above) will reflect the master schedule.
8. A teacher with documented professional difficulties shall not be eligible for position-sharing.
9. Position-sharing applications will be considered annually. Upon the dissolution of a partnership, the individual position-sharing teacher shall be guaranteed the contract that he/she held prior to position-sharing.
10. Position-sharing arrangements will be evaluated on an ongoing basis by the administration to determine if the Plan is being effectively implemented. The evaluation may include classroom observations and meetings with the team members. The team will meet with the administrator at least two (2) times prior to the end of the first semester to formally review the effectiveness of the position-sharing arrangement. Any concerns related to the effectiveness of the position-sharing arrangement will be promptly communicated to the team, which will be responsible for developing a strategy to address the concern(s), including revising the Plan. If the concerns persist, the team will be advised prior to February 1st that the arrangement will not be approved for the following year. An unsuccessful position-sharing arrangement will not preclude a teacher from applying for another opportunity with a different partner.
11. Position-sharing teachers who teach in the morning must attend all morning meetings; position-sharing teachers who teach in the afternoon must attend all afternoon meetings. Position-sharing teachers must attend all required evening meetings.
12. If more than five (5) pairs of teachers apply to position-share in any school year, anyone who has position-shared for at least three (3) years would not be eligible to position-share in that year.
13. Not being able to position-share during a particular school year does not prevent a teacher from requesting a part-time assignment. However, once a teacher has entered into a contract for a part-time position, he/she is only guaranteed that percent

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1/29/2024

of employment in future years.

F. Meetings

1. Whenever possible under all existing circumstances, building meetings will be on an "as required" basis with an advanced agenda and scheduled at convenient times. For purposes of this section, teachers teaching in more than one (1) building shall be assigned to only one (1) building's meetings.
2. When any teacher attends a meeting during his/her guaranteed forty (40) minute lunch, he/she shall be compensated for this time at his/her pro-rated per diem rate if the meeting was requested by the building administrator.
3. Staff meetings shall be scheduled at convenient times and an agenda shall be provided at least twenty-four (24) hours in advance of the meeting. There can be a maximum of thirty (30) hours of administratively-called meetings per year (exclusive of student disciplinary meetings, IEP meetings, and emergency meetings called by the Superintendent).
4. The Administration will notify teachers in advance of any meetings that will be recorded or broadcast in part or in full.
5. The Administration may utilize up to ten (10) minutes of additional flex-time twice a month to schedule forty (40) minute administratively-called staff meetings. Staff meetings utilizing flex-time must be scheduled a minimum of two (2) weeks in advance or staff attendance will not be required for any additional time beyond the contractual day. Minutes utilized under this section are part of the thirty (30) hours of administratively-called meetings.

SECTION 16 – RESPONSIBILITIES AND DUTIES OF INSTRUCTIONAL STAFF IN EFFECT FOR THE 2021-2022 SCHOOL YEAR ONLY

A. Teacher Responsibility

1. All teachers are responsible to the Superintendent through the building principal or other administrative or supervisory staff members.
2. The senior high school teaching load will be up to six (6) assignments plus homeroom and an assigned non-curricular duty. Within the six (6) high school English academic class

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1/29/2024*

BBH BOE and BEA Negotiations
January 29, 2024 –TA – 4 PM

assignments (English I-IV, AP English & Creative Writing I-II), there shall be an effort to limit the assigned number of students to each English teacher to a total of 125 students as of August 1st, preceding each school year. High School teachers will have four hundred (400) minutes of planning time per week during the student day (prorated for part-time teachers). In no event, as of the August 1st-date, shall there be a total in excess of 135 student assignments to each English teacher at the high school. For teachers who instruct English academic classes and specific English elective classes (Modern Novel, Debate, Public Speaking, Journalism & Newspaper Publishing), there shall be an effort to limit the assigned number of students to those English teachers to a total of 135 students as of August 1st, preceding each school year. In no event, as of the August 1st-date, shall there be a total in excess of 145 student assignments to those English teachers at the high school. The Superintendent shall have complete discretion and authority after August 1st to assign in excess of the 135 or 145 students due to subsequent increased student enrollment. If the limits are exceeded as of the first Monday in October, each affected English teacher will receive a stipend of twenty dollars (\$20) for each student in excess of the 135 or 145 students assigned to the English teacher as of the first Monday in October. Students enrolled after the first Monday in October will not be counted toward the stipend. Said stipend shall be paid by separate check on or before the first payroll in November and is subject to withholdings (taxes, S.T.R.S., etc.).

3. — During the 2021-2022 school year, the District will convene a committee made up of BEA members, appointed by the BEA President, and high school administrators to discuss and make recommendations regarding the high school master schedule for the 2022-2023 school year. Any recommendations that come out of the committee will be submitted to the administration by the end of the first semester.

4. — During the 2021-2022 school year, the District will convene a committee made up of BEA members, appointed by the BEA President, and middle school administrators to discuss and make recommendations regarding the middle school master schedule for the 2022-2023 school year. Any recommendations that come out of the committee will be submitted to the administration by the end of the first semester.

*gaw
1/29/2024*

BBH BOE and BEA Negotiations
January 29, 2024 –TA – 4 PM

5. During the 2021-2022 school year, the District will convene a committee made up of BEA members, appointed by the BEA President, and elementary administrators to discuss and make recommendations regarding the elementary school master schedule for the 2022-2023 school year. Any recommendations that come out of the committee will be submitted to the administration by the end of the third grading period.

6. Middle school teachers will have 400 minutes of planning time weekly during the student day (prorated for part time teachers). Efforts will be made to assign each seventh and eighth grade English teacher a maximum of 135 students. However, if the 135-student limit is exceeded as of the first Monday in October, each affected seventh and eighth grade English teacher will receive a stipend of twenty dollars (\$20) for each student in excess of the 135 students assigned to the English teacher as of the first Monday in October. Middle school students enrolled after the first Monday in October will not be counted toward the stipend. Said stipend shall be paid by separate check on or before the first payroll in November and is subject to withholdings (taxes, S.T.R.S., etc.).

7. Each elementary teacher, intermediate teacher, elementary school counselor, psychologist (all levels), and Speech/Language Pathologist (all levels) shall have at least three hundred forty (340) minutes of planning and conference time per week during the student day. This planning/conference time shall be in blocks of no fewer than ten (10) minutes. In addition, building teachers may work with their respective grade level team leaders to devise a schedule that will release kindergarten fifth grade teachers during the school day up to four (4) hours per year for collaboration and/or individual planning time that will be determined by the teachers' preferences/needs. The schedule must be approved by the building administration. The scheduled time for each teacher will be dependent upon sufficient supervision of students by existing staff, supplemented as possible with volunteers.

B. Assignment of Student Teachers

1. Teachers shall be encouraged to recognize their obligation to the profession by accepting the assignment of student teachers.

2. Principals shall have the responsibility of selecting co-operating teachers and sharing with them the orientation of

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1/29/2024*

BBH BOE and BEA Negotiations
January 29, 2024 –TA – 4 PM

student teachers. The assignment of student teachers shall be done equitably.

3. In the event a college or university is barred from giving a stipend to a co-operating teacher, and instead gives that stipend to the District, the District shall create a supplemental contract for the cooperating teacher in the amount equal to the stipend the college or university awarded to the District. Said supplemental contract shall be paid to the teacher at the end of the semester in which the student teacher worked in the District.

C. Lesson Plans

A teacher shall have available clearly written weekly lesson plans on the first school day of each week. The plans shall be based on the approved course of study and the standards made applicable to the District.

D. Professional Meetings

1. Teachers are encouraged by the Board to attend local, regional, state, and national meetings which contribute to professional growth. The Board may pay transportation and expenses. Prior approval to attend a meeting is required. The opportunity for attendance at meetings should be distributed as equally as possible by the administration.
2. These meetings shall be exclusive of OEA, NEA, and NEOEA conventions and business meetings.

E. Collecting Money

A teacher shall be freed of the responsibility of collecting money from students, except for Board approved fees or projects.

F. Parent Teacher Conferences

1. Parent teacher conferences (K-12) will be held on two evenings during the school year. Each evening will consist of three hours. Over the course of the two three-hour evenings for parent-teacher conferences, each teacher shall schedule a minimum of fourteen (14) in person and/or telephone conferences (for the parents who are unable to attend in person). Teachers shall document each parental conference including the name, time and student's grade at the time of the conference. Additional comments shall not be required unless the student is in jeopardy of failing at the time of the conference or the teacher wishes to

BW
1/29/2024

BBH BOE and BEA Negotiations
January 29, 2024 –TA – 4 PM

document the communication.

2. The scheduling of the parent conference evenings will be determined by the building principals K-5, 6-8, and 9-12 after receiving staff input. These dates will be announced at least thirty (30) days before the conference evenings.

3. Elementary teachers shall be provided additional release time as necessary to enable each teacher to complete parent teacher conferences.

4. Intervention specialists, psychologists, counselors and speech-language therapists shall attend parent teacher conferences.

G. Traveling Teachers

1. Each traveling teacher shall be given a minimum of fifteen (15) minutes to travel from one building to another. The fifteen (15) minutes shall come from the total student contact time of the traveling teacher.

2. Each traveling teacher shall be reimbursed at the IRS rate for mileage traveled going from one building to another.

3. Each traveling teacher shall only be required to attend the evening meetings of his/her home school.

4. The administration will make every effort to schedule each traveling teacher's planning and conference time adjacent to his/her traveling time, and will make every effort to limit the amount of times per day that each traveling teacher has to travel between school buildings.

5. If a traveling teacher is going to be late to the school to which he/she is reporting due to unforeseen or hazardous circumstances (e.g., bad roads due to inclement weather, vehicle break-down, etc.), that teacher will contact the building principal/designee at the school to which he/she is reporting as soon as possible. The building principal/designee shall make arrangements to have the class of the traveling teacher covered until the traveling teacher arrives.

H. Developmental Pre-School

1. Each teacher in the developmental pre-school program shall have students four (4) days a week (Monday through Thursday).

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1/29/2024*

2. — Fridays shall be used for conferencing, preparation, planning, and home visits.

I. — Medical Procedures

1. — No teacher shall be required to perform any medical procedures (including but not limited to bandaging cuts/abrasions, gastrostomy tube feedings, tracheostomy suctioning and catheterizations) on any student.

2. — The administration of student medication shall be in accordance with the Ohio Revised Code and its regulations. No teacher shall be required to clean up body fluids of any student.

3. — At the time a teacher or the District initiates an out-of-District trip, the affected teacher(s) can request a meeting with a building administrator and healthcare aide or coordinator (or athletic trainer for athletic trips) to discuss the participating students' needs and strategize how to address those needs.

4. — A school employee under the definition appearing in ORC 2744.01(B) is immune from liability unless his or her acts or omissions were manifestly outside the scope of his or her employment or official responsibilities, involved malice or bad faith, were made in a wanton or reckless manner, or unless the Revised Code expressly imposes liability.

5. — In accordance with ORC 2744.07 and with respect to suits against a school district employee for acts or omissions in connection with a governmental or proprietary function, the District shall provide for the employee's defense if the act or omission occurred while the employee was acting in good faith and not manifestly outside the scope both of his or her employment or official responsibilities.

J. — Non-classroom Teachers

Each elementary principal shall assign each teacher who is not a regular classroom teacher in his/her building to a grade level team. This non-classroom teacher, however, does not need to attend grade level team meetings or portions of grade level team meetings where information being discussed does not affect him/her.

K. — Mandated Individually Administered Diagnostic Tests

L. — Preschool teachers will receive a substitute for one (1) day per

MAN
1/29/2024

BBH BOE and BEA Negotiations
January 29, 2024 –TA – 4 PM

semester to accommodate the administration and grading of state-mandated diagnostic assessments (i.e. Early Learning Assessments). If a teacher requires additional release time due to class size, arrangements can be coordinated through the building principal.

2. Kindergarten teachers will use the first three days of school for kindergarten phase in, orientation, and any required testing.

3. When a diagnostic test requires a one-to-one administration setting according to the required guidelines, the building principal shall work with the teacher teams to establish an appropriate testing schedule and to provide classroom teachers with substitutes when needed.

4. To facilitate the administration of diagnostic testing, a team approach to administration shall be utilized by ensuring that the educational professionals are assisting in the educational process (i.e., reading specialists, ELL teachers, regular education teachers, school counselors, etc.).

L. Professional Learning Community

1. Sixty (60) minutes per week, divided into a minimum of thirty (30) minute blocks, will be dedicated to the work of professional learning communities ("PLC"). The collaboration of teams shall cover PLC work, the continuous improvement plans for the building ("CIP"), and the strategic (or long range plan) of the district. PLC time shall not be considered planning time under the terms of this Agreement.

2. At the Pre-K-3 level, the Administration may schedule districtwide grade level or content level meetings once per month. The elementary day will be adjusted to 8:00 a.m. to 4:00 p.m. for that day. This sixty (60) minute meeting will satisfy the weekly sixty (60) minute PLC meeting requirement for that week. Teachers will be provided with travel time when meetings are held away from their home school.

M. College Credit Plus

1. In order to address the implementation of student options for state-mandated postsecondary education, a co-facilitated College Credit Plus (CCP) committee shall be created. The committee will meet regularly (at least quarterly) to develop a comprehensive plan for the implementation of College Credit

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1/29/2024*

BBH BOE and BEA Negotiations
January 29, 2024 –TA – 4 PM

Plus. The committee shall be comprised of an equal number of bargaining unit members and Brecksville-Broadview Heights City School District administrative employees. The bargaining unit members shall be appointed by the BEA President, and the administrative employees shall be appointed by the Superintendent. The total combined number of the committee members shall not exceed eight (8) unless additional staff is invited by mutual consent.

2. The co-facilitated committee shall present the product of its efforts to the BEA President and Superintendent on a mutually agreed upon date. The BEA and Board shall then negotiate the mitigating issues identified based on the recommendations of the co-facilitated committee for implementation during the 2017-2018 school year. The parties agree that the committee will meet quarterly in order to review, assess and, if necessary, refine the implementation of College Credit Plus as mutually agreed.

3. Adequate release time shall be granted for the work of the committee. If members of the College Credit Plus Committee determine by consensus to conduct some of their meetings/activities outside of the school year and/or school day, each member shall be compensated at the rate of .0007 of the highest teacher base in effect for each hour of College Credit Plus work beyond the teacher day. The members of the College Credit Plus Committee will determine the frequency of meetings beyond those contractually required, the date of meetings, location, and time of meetings.

SECTION 24 – TOBACCO-FREE ENVIRONMENT

- A. The use of tobacco inside school buildings, District offices, non-instructional facilities, and anywhere on school property (except in personal vehicles) is prohibited. The “use of tobacco” shall mean all use of tobacco, including a cigarette, cigar, pipe, snuff, **vape**, or any other matter or substances that contain tobacco **and/or nicotine**.
- B. The C.A.P.A. Coordinator shall assist in providing smoking-cessation workshops and information on alternative support systems for smoking cessation.

The parties tentatively agree as stated herein:

For Board of Education



For BEA

Date

1/29/2024

Date